

	OSC for FTC with CMC Statement	Section 583.410, subdivision (a), provides: "The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case." Section 583.420, subdivision (a), provides, in relevant part: (a) The court may not dismiss an action pursuant to this article for delay in prosecution except after one of the following conditions has occurred: (1) Service is not made within two years after the action is commenced against the defendant. (2) The action is not brought to trial within the following times: (A) Three years after the action is commenced against the defendant unless otherwise prescribed by rule under subparagraph (B). (B) Two years after the action is commenced against the defendant if the Judicial Council by rule adopted pursuant to Section 583.410 so prescribes for the court because of the condition of the court calendar or for other reasons affecting the conduct of litigation or the administration of justice. (Code Civ. Proc., § 583.420, subd. (a)(1), (2).) Here, on 2/2/26, the court granted Defendant's Motion to Strike the Complaint with 20 days leave to amend. To date, Plaintiff has not filed an amended Complaint. The deadline to do so has long since passed. Additionally, Plaintiff commenced this action on 3/13/23. Therefore, it has been pending for over three years and has not been brought to trial. Based on the foregoing, the motion is granted
11	American Built Science, LLC v. Lunarspace, Inc. 2026-01545490 Motion for Entry of Judgment CMC	Plaintiffs American Built Science, LLC and Theisscare, LLC's Motion for Entry of Default Judgment is CONTINUED to NOVEMBER 9, 2026, AT 1:45 P.M. Plaintiffs are ORDERED to file the mandatory CIV-100 form as required by California Rules of Court rule 3.1800(a) within 10 days of this order.
13	Lenahan v. Volkswagen Group of America, Inc. Motion for Attorney fees	Plaintiff Jaime Lenahan's motion for an award of attorneys' fees, costs and expenses is GRANTED as modified. Entitlement to Attorneys' Fees: Plaintiff moves for attorneys' fees pursuant to Civil Code section 1794, subdivision (d). On March 25, 2026, Plaintiff accepted Defendant Volkswagen Group of America, Inc.'s

	Code of Civil Procedure section 998 Offer. The parties do not dispute that Plaintiff is the prevailing party entitled to attorneys' fees. Amount of Attorneys' Fees: "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) Plaintiff seeks an award of attorneys' fees pursuant to section 1794, subdivision (d) under the lodestar method in the amount of \$21,611 and costs and expenses of \$650.81. Defendant challenges both the hourly rate charged, and the total number of billable hours claimed by Plaintiff's attorney. The hourly rates of Chad David (\$795) is reduced to \$450. Defendant challenges Plaintiff's request for 6.3 hours (\$4,027.50) related to preparing Plaintiff's Fee Motion and an additional 5 hours (\$3,975) for anticipated billing to review Defendant's Opposition, draft a Reply, and attend the hearing. The amount requested is excessive and reduced by 4.5 hours at \$795 (\$3,577.50) and 1.5 hours at \$250 (\$375). Defendant also challenges Plaintiff's request for 3.4 hours at \$795 for reviewing file, researching warranty, NHTSA database and repairs, drafting complaint and supporting documents. The hours requested with respect to preparing a form complaint is excessive and reduced by 1.7 hours at \$795 (\$1,351.50.) Further, it is unreasonable to have Defendant pay for rejected filings. Therefore, the fees charges for 0.2 hours at \$250 (\$50) on 1/21/26 and 0.3 hours at \$250 for \$75 are stricken. Defendant challenges the hours expended by Plaintiff's counsel in preparing discovery responses as unnecessary. Defendant propounded written discovery on Plaintiff on February 27, 2026, with responses due April 1, 2026. It was therefore reasonable for Plaintiff to prepare discovery responses even though they were never served because the case settled before the discovery responses were due. The request to reduce fees incurred in discovery is denied. Defendant also challenges \$60 filing fee for the fees motion charged by Plaintiff as attorneys' fees on 5/19/26. The filing fee is properly charged as costs. Therefore, the amount of \$60 in filing fee is stricken.
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		Lastly, Defendant challenges Plaintiff's request for 4.4 hours at \$250 for routine surrender process. The amount is excessive and reduced to 2.2 hours at \$250 (\$550.) Based on the foregoing the court awards fees of \$11,760. Costs: Defendant does not challenge any costs sought by Plaintiff. Therefore, the costs are awarded in the amount of \$650.81. Plaintiff to give notice.
14	Bailor v. Dermlite. LLC 2023-01309601 Motion to for summary judgment/adjudication	Defendants' motion for summary judgment is DENIED. Defendants' motion for summary adjudication is GRANTED in part as to the third and fourth causes of action and DENIED as to the remaining causes of action. Defendants Dermlite LLC, John Bottjer, Thorsten Trotzenberg, and Nizar Mullani (collectively, "Moving Defendants") move for summary judgment or, in the alternative, summary adjudication of each cause of action of the Second Amended Complaint ("SAC"). Defendants' request for judicial notice of the SAC and the court's ruling on defendant Jody Katz's motion for summary judgment or, in the alternative, summary adjudication is granted. (See Evid. Code, § 452, subd. (d).) On 12/18/24, plaintiff Ryan Bailor filed the operative SAC against Moving Defendants as well as defendants Katz and Rosa Torres alleging eight causes of action for: (1) wrongful termination in violation of public policy; (2) retaliation; (3) employment discrimination based upon gender; (4) hostile work environment and harassment in the workplace; (5) intentional infliction of emotional distress; (6) negligent supervision and retention; (7) negligence; and (8) breach of contract. On 11/3/25, the court granted defendant Katz's motion for summary judgment or, in the alternative, summary adjudication. Legal Standard "The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that